

25STCV33495 25STCV33495

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-07-14

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Case Number: 25STCV33495 Hearing Date: July 14, 2026 Dept: 731

[TENTATIVE] ORDER RE: DEFENDANT'S MOTION FOR SANCTIONS UNDER CALIFORNIA CODE OF CIVIL PROCEDURE SECTIONS 128.5 AND 128.7 Dept. 731 8:30 a.m. July 14, 2026

Moving Party: Defendant, Kay Properties & Investments LLC

Opposing Party: Plaintiff, Brent Wilson

Notice: OK

1. Background Facts

Plaintiff Brent Wilson sues Defendant Kay Properties & Investments LLC and Does 1 to 10 pursuant to a November 17, 2025, Complaint, alleging statutory and common law claims relating to Plaintiff's since-terminated employment with Defendant. Before the Court is Defendant's opposed motion for sanctions pursuant to Code of Civil Procedure section 128.5 and 128.7.

2. Motion for Sanctions – Code Civ. Proc., §§ 128.5, 128.7

a. Safe Harbor Period

Unlike most motions, motions for sanctions under Code of Civil Procedure sections 128.5 and 128.7 include a safe-harbor period between the time the motion is served and the time it is filed. (Code Civ. Proc., §§ 128.5, subd. (f)(1)(B), (C), 128.7, subd. (c)(1), (2).) Here, Defendant presents a sufficient

basis for the Court to conclude that this motion was served 21 or more days prior to being filed with the Court. (Motion, Scheithauer Decl., ¶¶ 2-5, 18, Ex. A.)

b. Legal Standard on Motion for Sanctions

California law permits a party to file (1) motions based on actions or tactics that are made in bad faith and are frivolous or solely intended to cause unnecessary delay (Code Civ. Proc., § 128.5) and (2) motions based on the presentation of frivolous papers or papers brought for an improper purpose (Code Civ. Proc., § 128.7). California courts have broad discretion to

impose these sanctions even where statutory predicates are met, keeping in mind that the sanctions statute must not be construed so as to conflict with the primary duty of an attorney to represent his or her client zealously, where forceful representation often requires that an attorney attempt to read a case or an agreement in an innovative though sensible way. (Peake v. Underwood (2014) 227 Cal.App.4th 428, 441 (Peake) [in § 128.7 context].)

c. Discussion

The Court finds in favor of Plaintiff but denies monetary sanctions for either party.

Here, Defendant's argument under both statutory sections stems from a uniform idea: Plaintiff violated sections 128.5 and 128.7 by bringing this action after having signed a release at termination covering the claims alleged in this action, and by falsely alleging in his Complaint at paragraph 25 that he "refused" Kay Properties' severance offer, as contradicted by Defendant's evidence. (Motion, p. 11; see Motion, Scheithauer Decl., ¶ 2, Ex. A [safe harbor letter] & Sub-Ex. A [release].)

However, the Court finds that neither bad faith, frivolous papers, improper purpose, nor an intent to cause unnecessary delay appears here. Simply, the parties' papers show a colorable dispute relating to whether the November 30, 2023, release is enforceable as to bar Plaintiff's prosecution of claims in this action, with Plaintiff arguing that the release is not enforceable because it is unlawful on its terms and lacks consideration for contract formation purposes. (Opposition, pp. 9-12.) A simple amendment to the operative pleadings should be sufficient to update the allegations to confirm with Plaintiff's position here.

Moreover, and specifically relating to bad faith under section 128.5, in 2017, the Legislature amended section 128.5 to make clear that bad faith is measured subjectively. (See Sen. Rules Com., Off. of Sen. Floor Analyses, 3d reading of Assem. Bill No. 984 (2017–2018 Reg. Sess.) as amended July 12, 2017, p. 1.) Here, the Opposition shows a lack of subjective bad faith in the filing of the Complaint in this action.

And even if Defendant had met the elements for a motion for sanctions, the Court would be disinclined to grant sanctions here. The purpose of sanctions is to deter improper conduct and to encourage compliance with court orders and rules. (See Code Civ. Proc., §§ 128.5, subd. (f)(2) [sanctions limited to what is sufficient to deter repetition of action or tactic], 128.7, subd. (d) [limited to what is sufficient to deter repetition of conduct].) Here, to impose sanctions on a party making a colorable argument for voiding of a release would accomplish less to deter improper conduct and encourage compliance with court orders or rules than to chill Plaintiff's right to file suit and interfere with zealous representation as contemplated in Peake.

Last, monetary sanctions as requested by Defendant and Plaintiff in their papers are DENIED. Defendant's motion was denied, and fees in favor of Plaintiff would not be appropriate in light of the good faith dispute presented by the parties' papers, which negates bad faith, improper purpose, and an intent to create unnecessary delay by way of Defendant having filed its motion.

d. Conclusion

Defendant Kay Properties & Investments LLC's motion for sanctions is DENIED.

Plaintiff's request for sanctions is DENIED.

Defendant Kay Properties & Investments LLC is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive

an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: July 14, 2026 _____

MARK C. KIM

Judge of the Superior Court